

# HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PERU

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## Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Peru, grounded in the SEIA environmental-assessment system, SENACE and OEFA, prior consultation, the constitutional courts, and documented community campaigns

*This guide uses the Peruvian legal terms you will actually encounter (the SEIA and its EIA categories, SENACE certification, citizen participation and prior consultation, OEFA oversight, the amparo and acción popular, the Defensoría del Pueblo, and so on), each explained in plain language where it first comes up. Note that the rules governing SENACE and MINEM have been shifting; the core mechanics below still apply, but always check the current position.*

**A note on terms.** Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Spanish terms are given with a short English gloss.

**A note on money.** Budgets in this guide are in Peruvian soles (PEN). Every figure is indicative — Peruvian community campaigns range from near-zero (volunteer-run, pro-bono lawyers, free public data) to funded efforts that commission independent studies. Treat the ranges as a menu, not a bill.

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## INTRODUCTION & FRAMEWORK

### Why This Matters

Community action changes project outcomes in Peru — and the levers are specific, so knowing which ones work is half the battle. Peru's **SEIA** (Sistema Nacional de Evaluación de Impacto Ambiental — the national environmental impact assessment system) requires projects with significant impacts to obtain **environmental certification** before they can begin, and it guarantees **citizen participation (participación ciudadana)** while the assessment is prepared and reviewed. For projects on the lands of Indigenous or native peoples, a further and powerful right applies: **prior consultation (consulta previa)** under Law 29785 and **ILO Convention 169**, which the Constitution incorporates. And Peru's constitutional courts have repeatedly protected these rights through the **amparo** (a fast constitutional action to stop a rights violation) — including striking at mining concessions granted without the consultation the law required.

That is a real toolkit. The honest counterweight is that Peru's economy leans heavily on mining, oil and gas, and large infrastructure; the State actively promotes investment; the environmental authority has at times been weakened in favour of the sector ministries; citizen participation is often run as a formality; and prior consultation, though a right, is **not a**

**veto** — the State makes the final decision. Enforcement is uneven, and communities defending land and water have faced real danger. Communities across Peru — in the Andes and the Amazon, fighting mines (Conga, Tía María, Las Bambas, Espinar), oil blocks, dams, roads, and projects threatening rivers, glaciers, wetlands (bofedales), and headwaters — have organised anyway, and while stopping a national-priority project outright is hard, delay, the annulment of a defective certification, binding conditions, OEFA sanctions, and forcing genuine consultation are all achievable.

**What "winning" realistically means.** Rarely a permanent government "no" to a promoted project — though a **court annulment** of an unlawfully-granted certification or concession is exactly that when you get it. More often: an EIA (or an EIA modification) sent back or annulled for defects or for skipping consultation; conditions tightened; **OEFA** sanctions and oversight that raise the cost of non-compliance; a project delayed for years until its economics or politics change; a regional government persuaded to withhold support; or genuine prior consultation forced where it was skipped. Each has happened. The realistic goal is to make the project slow, costly, and legally and politically exposed — and to use citizen participation, prior consultation, OEFA, the courts, and organised community pressure that Peru actually responds to.

## The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, which authority certifies it, under which EIA category, whether prior consultation applies, and the date the decision becomes final.
2. **Documentation** — build an evidence record strong enough for citizen participation, an OEFA complaint, and, if needed, an amparo or contentious-administrative suit.
3. **Local opposition** — organise a durable community movement, because sustained local pressure is what Peru's system responds to most.
4. **Legal challenges** — use citizen participation, prior consultation, OEFA oversight, and the constitutional and administrative courts.
5. **Media strategy** — generate coverage that raises the political cost of approval.

No single step wins alone. The combination — local pressure plus citizen participation, prior consultation, OEFA, and the courts — is what works.

**A realistic picture of the odds.** Be honest with your community from the start about what is likely. Most projects the State promotes and that reach a certification decision are certified, often with conditions — an outright rejection is the exception, not the rule, though a court annulment for a skipped consultation or a serious defect does happen. The more common wins are incremental and cumulative: forced prior consultation; an EIA modification sent back or annulled; conditions tightened; OEFA sanctions and oversight that raise the cost of non-compliance; a delay of months or years that changes the economics or lets an election or a change of government intervene; or a region that turns against the project. None of these is a single dramatic veto, but each is a real outcome that has stopped, shrunk, or reshaped real Peruvian projects. And Peru's landmark conflicts show a further truth: a fight can "lose" the specific project yet win years of delay, forced consultation, sanctions, and lasting national policy change. A campaign that measures itself only against total victory will feel like it is losing even as it wins; one that banks each delay, each condition, and each concession keeps morale and momentum. Plan for a marathon, not a sprint — and protect your people along the way.

**Your rights here are real, not favours.** Peru's Constitution recognises the right to a healthy, balanced environment; ILO Convention 169 (with constitutional rank through Article 55) guarantees Indigenous and native peoples prior consultation; the General Environmental Law guarantees participation and access to environmental information; and Peru has signed the Escazú Agreement on environmental rights and the protection of defenders. That framing matters practically: when an authority runs a token participation process, skips consultation, or stonewalls an information request, it is not merely being unhelpful — it is potentially breaching binding obligations you can enforce through the amparo, the courts, OEFA, and international bodies. Approach the process as a rights-holder, not a supplicant.

## Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Peru's system leans hard toward extractive investment, the environmental authority has been weakened at times, and participation is often a formality. Assessing that honestly helps you choose the right tools: the strongest routes are usually a rigorous intervention in citizen participation, insisting on **prior consultation** where Indigenous or native rights are engaged, an **OEFA** complaint on monitoring and compliance, and — if a certification issues unlawfully — an **amparo** or an administrative suit, all combined with sustained community and political pressure. A tilt changes which lever works; it does not remove them all. Section 10 deals honestly with tilted situations, including national-priority projects, the risks to land defenders, and how to plan around them.

## How to use this guide

Read Sections 1–3 once. Then work Section 4 (Target Identification) immediately — it produces the facts every other step needs, above all your deadlines, which authority certifies the project, and whether prior consultation applies. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you decide, honestly, whether and when to keep going.

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## HOW THE SYSTEM WORKS

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Before you can fight a project you have to know who decides it, how, and the words the system uses. Peru is a unitary state with three levels of government and a set of specialised environmental bodies. Power over a project is shared between the **central government** (the environment ministry MINAM, the sector ministries such as MINEM for mining and energy, and the specialised bodies SENACE and OEFA), the **regional governments (gobiernos regionales)**, and the **local/municipal governments** — all within a framework set by the Constitution and international law (notably ILO Convention 169).

### The levels of government — and what each one controls

**The central government and its specialised bodies.** This is where most large projects are decided. **MINAM** (the environment ministry) sets environmental policy and houses the key agencies. **SENACE** (Servicio Nacional de Certificación Ambiental para las Inversiones Sostenibles) reviews and approves the **detailed EIA (EIA-d)** for the biggest projects. **MINEM** and the other sector ministries certify smaller categories and promote their sectors — a built-in tension, since the promoter and the certifier can be the same ministry. **OEFA** (Organismo de Evaluación y Fiscalización Ambiental) is the environmental oversight and enforcement agency: it monitors, inspects, and sanctions. The **ANA** (Autoridad Nacional del Agua) governs water rights. **SERNANP** manages protected natural areas. The **Ministry of Culture** oversees prior consultation.

**The regional governments.** Regional governments certify and oversee **smaller projects** (for example small-scale and artisanal mining in their jurisdiction), manage some permits, and are important political actors — a regional governor who opposes a project, or a regional council that passes a resolution against it, matters a great deal, especially in the Andes and Amazon regions where most conflicts occur.

**The local/municipal governments.** Provincial and district municipalities handle land-use (zonificación), local permits, and licences, and can pass ordinances; municipal opposition and the withholding of a local licence can obstruct a project even where the municipality cannot legally veto it.

**Which one is "yours"?** Ask: which environmental certification does this project need, and who grants it — **SENACE** (big projects, EIA-d), a **sector ministry** like MINEM (categories I–II), or a **regional government** (small-scale)? Does it need a **water permit** from ANA, or affect a **protected area** (SERNANP)? And, decisively, does it affect **Indigenous or native peoples**, triggering **prior consultation**? Pinning this down is Step 1, and it decides the deadlines, the decision-maker, and which rights and grounds apply.

### How a decision is actually made — the journey of a project

The SEIA classifies projects into three categories by severity of impact: **Category I** (a Declaración de Impacto Ambiental, DIA — low impact), **Category II** (a semi-detailed EIA, EIA-sd — moderate impact), and **Category III** (a detailed EIA, EIA-d — significant impact, the big projects). For a Category III project the path is roughly:

1. **Classification and terms of reference.** The project is classified and the scope of the required EIA is set.
2. **The EIA and citizen participation.** The company prepares the **EIA**, and **citizen participation** runs alongside it — **talleres (workshops)**, a public hearing (**audiencia pública**), and comment periods, so affected people can inform themselves and submit observations. **This is your main formal moment** to get objections on the record.
3. **Prior consultation, where it applies.** If the project affects the collective rights of **Indigenous or native peoples**, the State must carry out **prior consultation (consulta previa)** under Law 29785 and Convention 169 — informing, allowing internal evaluation, and holding intercultural dialogue — *before* the measure is adopted. It is a right to be consulted in good faith, though the final decision rests with the State.
4. **Certification.** **SENACE** (or the sector ministry, by category) reviews and **approves or rejects the EIA** and issues the **environmental certification** — the permission without which the project cannot lawfully begin. Conditions attach.
5. **Oversight and enforcement.** Once operating, the project is monitored by **OEFA**, which can inspect, order measures, and **sanction** non-compliance. A modification of the EIA (an **MEIA**) reopens participation — a frequent and important

battleground.

Beyond certification, the project needs its **water permit** (ANA), any **protected-area** authorisation (SERNANP), and **local land-use and municipal** permits.

## The rulebook — the policies that decide the outcome

- **The SEIA and its regulations** (Law 27446; DS 019-2009-MINAM). Was certification required, the right category assigned, and the EIA properly done, with genuine citizen participation?
- **Prior consultation (Law 29785 + Convention 169)**. Was consultation required and carried out in good faith before the decision? A skipped consultation is a powerful, court-tested ground.
- **The General Environmental Law (Ley 28611)**. Sets the rights to a healthy environment, to participation, and to environmental information, and the polluter-pays principle.
- **Water, protected-area, and sector law**. ANA water rules, SERNANP protected areas, and the mining/energy statutes add separate permits and grounds.

## Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Mining, hydrocarbons, and infrastructure are central to Peru's economy and public revenue; the State promotes investment and has created "fast-track" and articulation schemes to speed permits; sector ministries both promote and certify; and land and water are contested. Recent measures have shifted certification power toward MINEM, the promoter. None of this is illegal, but it explains the default lean toward approval — and why the community's best levers are citizen participation, prior consultation, OEFA oversight, the courts, and organised local and political pressure, rather than trust in the process leaning your way.

## The overseers — who watches the decision-makers

- **OEFA** — the environmental enforcement agency; monitors, inspects, and sanctions non-compliance (and takes citizen complaints).
- **The Judiciary and the Tribunal Constitucional** — the courts hear the **amparo** (constitutional rights protection), the **acción popular** (against unlawful regulations), and contentious-administrative suits; the Constitutional Court is the last word on rights, including consultation.
- **The Defensoría del Pueblo (Ombudsman)** — a respected, independent body that defends rights and, distinctively, publishes a monthly **Reporte de Conflictos Sociales** tracking social conflicts nationwide — a powerful, authoritative resource for communities.
- **The Contraloría General** — audits public money and officials.
- **The Ministerio Público (prosecutors)** — including specialised environmental prosecutors (**FEMA**), for environmental crime and corruption.

Naming the right body signals you understand the system, and involving OEFA, the Defensoría, or — where rights are engaged — the constitutional courts at the right moment can change a project's whole trajectory.

## A quick map of the words you will actually hear

The vocabulary is half the barrier, so here is the shorthand in plain terms. **SEIA** is the national environmental impact assessment system; a project's **EIA** (estudio de impacto ambiental) is the study the company must submit, classified as **Category I (DIA)**, **II (EIA-sd)**, or **III (EIA-d)** by how much harm it may do. **SENACE** is the agency that approves the big (EIA-d) studies; **MINEM** and other sector ministries certify smaller ones and also promote their sectors — remember that tension. The **certification (certificación ambiental)** is the permission without which the project cannot start.

**Participación ciudadana** is your formal chance to submit **observaciones (observations)** in workshops (**talleres**) and a public hearing (**audiencia pública**). **Consulta previa** is prior consultation — the right of **comunidades campesinas y nativas** (recognised peasant and native communities) to be consulted before a measure affecting their collective rights, under **Law 29785** and **ILO Convention 169**; it is a right to good-faith dialogue, not a veto, but its absence can void a decision. **OEFA** is the environmental enforcement agency that inspects and sanctions; **ANA** governs water; **SERNANP** protected areas. An **MEIA** is a modification of an approved EIA — a frequent battleground. The **amparo** is the fast, fee-free constitutional lawsuit to protect a right; the **acción popular** challenges an unlawful regulation; and the **Defensoría del Pueblo** is the Ombudsman whose monthly conflict report tracks fights like yours. Keep this list to hand — using the right term signals that you understand the system and cannot be brushed off.

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# QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Peruvian and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Peru sits inside the table: **prior consultation** (where Indigenous or native rights apply), the **amparo**, and **OEFA** oversight make the participation-and-legal path genuinely usable — but a national-priority mine or oil block backed by the State and a sector ministry is a hard, often years-long fight, so combine every lever with durable local and political pressure.

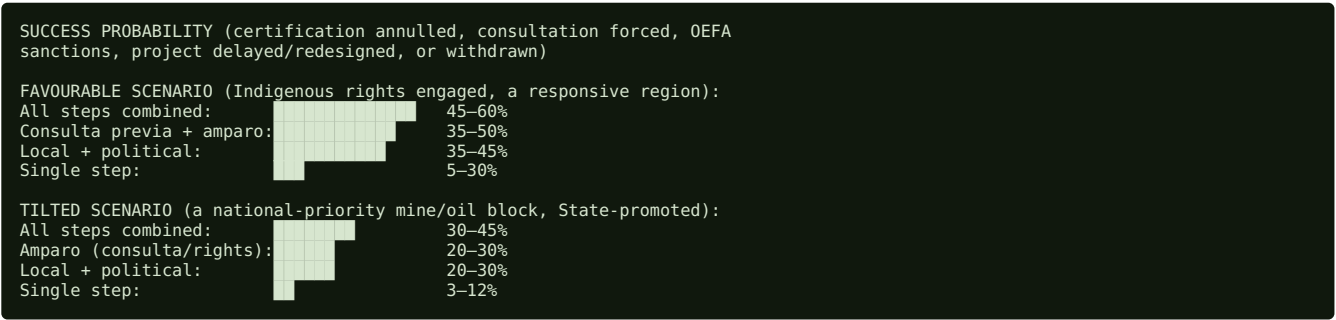
## Individual Step Success Rates

| Approach                        | Success Rate | Timeline     | Cost (PEN)       | What "Success" Means                                                                       |
|---------------------------------|--------------|--------------|------------------|--------------------------------------------------------------------------------------------|
| Documentation only              | 5-10%        | 3-4 months   | S/500-15,000     | Project slowed; public better informed                                                     |
| Local opposition only           | 20-30%       | 6-24 months  | S/2,000-40,000   | Local pressure; region/municipality takes notice                                           |
| Citizen participation only      | 10-20%       | 1-3 months   | S/500-8,000      | On record; can shape conditions/certification                                              |
| OEFA complaint only             | 15-25%       | 6-18 months  | S/0-5,000        | Inspection, order, sanction; compliance pressure                                           |
| Amparo / court only             | 20-30%       | 12-48 months | S/0-80,000       | Annul certification/concession; force consultation                                         |
| Media only                      | 10-15%       | 3-6 months   | S/500-10,000     | Public knows; no action by itself                                                          |
| Docs + local opposition         | 30-40%       | 12-24 months | S/5,000-60,000   | Pressure plus tightened conditions                                                         |
| Local + political (region/muni) | 35-45%       | 12-30 months | S/5,000-60,000   | Regional/municipal resistance; resolutions                                                 |
| Consulta previa + amparo        | 35-50%       | 18-48 months | S/5,000-90,000   | Force consultation / annul for its absence                                                 |
| All steps combined              | 45-60%       | 18-48 months | S/20,000-200,000 | Certification annulled, consultation forced, OEFA sanctions, delay/redesign, or withdrawal |

**Key insight:** all steps together are several times more effective than any single one — and in Peru the mix that works leans on **local pressure + citizen participation + prior consultation (where it applies) + OEFA + the amparo**, not any single lever. The distinctive Peruvian advantages are that prior consultation is a court-tested constitutional right, that OEFA gives a real oversight-and-sanction route, and that the amparo is a fast constitutional action.

*A note on legal cost: citizen participation, OEFA complaints, and information requests are free or low-cost. The amparo has no filing fee and is meant to be fast, though in practice cases run long; specialised NGOs and clinics take strategic cases pro bono. The main unavoidable cost is good expert evidence and travel in remote regions.*

## Effectiveness Visualization



**How to read this honestly.** In Peru, the strongest legal fact is usually a **skipped or bad-faith prior consultation** where Indigenous or native rights are engaged (courts have annulled measures for it), and the strongest oversight fact is **OEFA's monitoring-and-sanction** power. Where a project is a national priority pushed by the State and a sector ministry

(as with the big mines and oil blocks), even a strong case is hard, and the fight often runs for years and can be dangerous for land defenders. But even a "loss" that delays a project, forces genuine consultation, wins OEFA sanctions, or turns a region against it is a real outcome — Peru's biggest conflicts reshaped projects and policy even when the project was not stopped.

## Step Importance Ranking (When All Combined)

1. **Local opposition** — a durable community movement is the engine; Peru's system responds to sustained, organised local pressure.
2. **Documentation** — the raw material for participation, an OEFA complaint, and any court case.
3. **Prior consultation and the amparo** — the distinctive constitutional route where Indigenous or native rights apply.
4. **Citizen participation and OEFA** — cheap, essential, and (for OEFA) a real route to oversight and sanctions.
5. **Media and political pressure** — the amplifiers that move regions, municipalities, and the national government.

Winning Peruvian campaigns combined a durable community organisation, a rigorous evidence file, a rigorous participation intervention, a prior-consultation or amparo challenge and an OEFA complaint, sustained media, and political pressure on regional and municipal authorities — no single track alone.

## What Peruvian Campaigns Actually Show

A few patterns recur across documented Peruvian fights. **Prior consultation genuinely matters** — Peru's Constitutional Court has annulled measures, including mining concessions, granted without the consultation the law required, so insisting on it (and litigating its absence) is a real lever where Indigenous or native rights are engaged. **The EIA modification (MEIA) is a recurring battleground** — companies have tried to expand projects through rushed modifications with thin new studies and token participation (as at Las Bambas), and the resulting participation and legal fights have delayed and reshaped projects. **OEFA oversight and sanctions** create genuine compliance pressure once a project operates. And Peru's landmark conflicts — Conga, Tía María, Las Bambas, Espinar — show that organised, durable, sometimes years-long community resistance, backed by the Defensoría's conflict-monitoring and the courts, reshapes projects and national policy even when a specific development is not stopped. The through-line is that Peru rewards communities that combine local organisation with the participation, consultation, OEFA, and court levers.

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## STEP 1: TARGET IDENTIFICATION

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You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

### Core Questions You Must Answer

#### Question 1: What Exactly Will Be Destroyed?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, farmland, rivers, headwaters, glaciers, wetlands/bofedales, forest, Amazon, communal land), and what the project would do to it. Obtain the **EIA** (the estudio de impacto ambiental) from the certifying authority — it is public, and it is where the company, on the record, describes the impacts and admits the residual ones. List every admitted impact with its page reference — that list is the skeleton of your participation observations and any later case. Pay special attention to water: impacts on rivers, aquifers, headwaters, and wetlands are decisive in most Peruvian conflicts.

#### Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the **certifying authority** — SENACE (EIA-d), a sector ministry like MINEM (categories I-II), or the **regional government** (small-scale); (b) whether the project needs an **ANA water permit** or affects a **SERNANP protected area**; and (c) — decisively — whether it affects **Indigenous or native peoples**, triggering **prior consultation** led by the Ministry of Culture. Name the officials and the politics: the certifying body, the regional governor and council, and the municipalities. Because Peru's live levers are participation, consultation, oversight, and the courts, know both the decision-makers and the rights that apply.

#### Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: an EIA (or MEIA) rejected or annulled for defects or for skipping

consultation; **prior consultation** forced where it was omitted; **OEFA** sanctions and oversight; a refused **water permit** or protected-area authorisation; a **court annulment** via amparo or administrative suit; a regional or municipal government withholding support; or political defeat. Map the points and aim at the ones Peru actually responds to.

#### Question 4: When Is the Decision Final?

Diarise the deadlines — Peru's are real: the **citizen-participation window** (the comment periods and the audiencia pública, announced when the EIA is publicised); the certification decision; and the litigation clocks — the **amparo** should be filed promptly after the rights violation (there are time limits, so act fast), and a **contentious-administrative suit** challenging an administrative act has its own statutory period (confirm the exact deadline with a lawyer the moment a certification issues). OEFA complaints can be filed at any time but are strongest when tied to a specific breach. Missing a litigation deadline can forfeit the route.

#### Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: who profits, which companies (and parent companies) are behind the project, whether concessions or land changed hands before the proposal, whether the project carries a "priority" or fast-track designation, and whether any decision-maker has a tie to the company. Use public sources — the company registry (**SUNARP**), the mining-concession registry (**INGEMMET/Geocatmin**), officials' declarations, transparency portals, and public-procurement records (**OSCE/SEACE**). Build a dated, sourced timeline. Keep it rigorous; Section 11 covers doing it safely — and note that in Peru this work can carry real personal risk.

**Output of Step 1:** a one-page fact sheet with the project's exact description, the certifying authority and other permits, whether prior consultation applies, the regional/municipal politics, the specific act or lever to pursue, every deadline, and the money map.

#### Worked example: which lever is actually open

Suppose a copper mine is proposed in the Andes, above the headwaters that feed a campesino community's irrigation and drinking water, on land the community considers ancestral. Working the questions: **Q1** — the EIA admits impacts on aquifers, wetlands (bofedales), and river water, and heavy truck traffic. **Q2** — it is a big project, so **SENACE** certifies the **EIA-d**; it needs an **ANA water permit**; and because a **campesino/native community** with collective rights is affected, **prior consultation** should apply. **Q3** — the live levers are: rigorous **citizen-participation** observations; insisting on **prior consultation** (and litigating its absence by **amparo** if skipped); an **OEFA** complaint on water monitoring; and, if the certification issues unlawfully, an **administrative suit** or amparo. **Q4** — you diarise the participation windows and, once certification issues, the amparo and administrative-suit clocks. **Q5** — **SUNARP** and **Geocatmin** show the company, the concessions, and when they were granted. In an afternoon you know which levers are open — and that prior consultation, citizen participation, OEFA, and the amparo, not a single dramatic move, are your strongest cards.

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## STEP 2: DOCUMENTATION

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Documentation separates a campaign the authorities, OEFA, and the courts take seriously from one dismissed as complaint. It is also what your participation observations, an OEFA complaint, and any amparo all live or die on — and in Peru, documenting **water impacts** and, where relevant, the **Indigenous/native status and collective rights** of the affected community is especially decisive. Build three layers.

### The Three Documentation Layers

#### LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once ground is broken the "before" is gone. Start the day you learn of the project.

**Water above all.** Document the current state of rivers, streams, aquifers, headwaters (cabeceras de cuenca), glaciers, and wetlands (bofedales) — quality and quantity — using ANA data, regional environmental records, and your own dated records. Water is the decisive issue in most Peruvian conflicts, so this layer is the heart of your case.

**Nature and land.** Document habitats, protected species, forest and Amazon, and any **protected area (SERNANP)** or buffer zone, using MINAM, SERNANP, and SERFOR records. Document the community's **land and collective rights** — communal title, ancestral use, and whether the community is recognised as **campesina or nativa** — because that status

triggers prior consultation and communal-property protection.

**Health and community.** Document the human baseline — nearby homes, schools, health posts, water sources, the population, and existing health conditions (including any existing contamination) — because health and living-environment impacts strengthen both the case and the human story.

**How to hold it.** Keep everything dated, sourced, geo-referenced, and backed up in a shared folder (and, given the risks, in more than one safe place). A well-organised baseline is more useful than a merely large one.

**A note on doing your own measurements.** You do not always need an expensive lab. Dated, geolocated photographs of a river, a spring, a wetland (bofedal), or a stretch of grazing land *before* the project are evidence, and simple, consistent records — a monthly photo from the same spot, a note of a stream's flow and clarity, a log of the water your community draws — build a baseline no company's snapshot can match. Water is the decisive issue in most Peruvian conflicts, so this is where community-run monitoring pays off most: a modest, well-documented sampling programme upstream and downstream, ideally with a university or a technical NGO, can produce numbers a court and OEFA will take seriously. Where a specific figure will matter (heavy metals in water, flow in the headwaters, contamination near homes), that is where to spend or seek help. The principle is to capture the ordinary, unremarkable "before" now, cheaply and often, because once the machines arrive it is gone forever and its absence is the single most common reason harm cannot later be proved.

## LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the company's **EIA** (or the MEIA where the project is being modified) — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the EIA itself concedes, with page references. Unarguable.
2. **Water and headwater impacts** — scrutinise the treatment of aquifers, headwaters, and wetlands especially; underestimation here is both common and decisive.
3. **Underestimated or omitted impacts** — downplayed effects and, critically, **cumulative impacts** with other projects and concessions in the same basin (a recurring, powerful gap in Peru's basin-by-basin extractive landscape).
4. **Participation and consultation adequacy** — whether citizen participation was genuine, and — where Indigenous or native peoples are affected — whether **prior consultation** was carried out at all and in good faith. A skipped consultation or a token participation process is a documented, court-tested defect.

**Get expert eyes on it.** A critique carries far more weight when a qualified professional — a hydrologist, ecologist, or physician — has reviewed and signed it, even pro bono. Universities, environmental NGOs with technical staff (Peru has several strong ones), and independent scientists are sources of expertise. The goal is a written impact critique that reads as technical, that the authority, OEFA, and a court can act on.

## LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because that is what moves neighbours, regional authorities, and the courts. Document:

- **Health** — the specific risks (water contamination, heavy metals, dust, tailings) to nearby residents, drawing on recognised standards and, where possible, a physician's assessment; heavy-metal contamination of communities is a documented, powerful Peruvian issue.
- **Economy and livelihoods** — effects on agriculture, herding, fishing, and tourism, and on the water that livelihoods depend on. Quantify it.
- **Community, land, and culture** — the loss of communal land, water, a valued landscape, and cultural and ancestral ties, and the strain on the community.

Package this layer twice: a rigorous version for participation, OEFA, and any court, and a plain-language one-page version for neighbours and the press.

## How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record (water first) before ground is broken; confirm the community's recognised status; request ANA and SERNANP data early (see the next section).
- **Phase 2: Impact (Months 2-3)** — dissect the EIA/MEIA and the participation/consultation record; line up expert review before the participation window so your critique is ready to file.
- **Phase 3: Health/Economic (Months 3-4)** — quantify the human and economic stakes and package them.

## Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data** — file observations on time with your best evidence; the participation window is short.
- **Neglecting water** — water is the decisive issue in Peru; make it central and specific.
- **Ignoring consultation** — where Indigenous or native rights apply, the absence of prior consultation is often the winnable ground; do not overlook it.
- **Only environmental data** — authorities and courts respond to health, economic, and collective-rights arguments too. Breadth wins.
- **No expert review** — an impact critique no qualified person has signed is easy to wave away.
- **Ignoring the company's own admissions** — the EIA is a source of concessions. Quote it back, with page numbers.

## Documentation Budget Breakdown (PEN)

| Item                                               | Low (volunteer/pro-bono) | Higher (commissioned) |
|----------------------------------------------------|--------------------------|-----------------------|
| Baseline data gathering (esp. water)               | S/500–3,000              | S/5,000–40,000        |
| Expert technical report (hydrology/health/ecology) | S/0 (pro bono)           | S/10,000–80,000       |
| Independent monitoring/sampling                    | S/500–5,000              | S/5,000–50,000        |
| Legal consultation on the file                     | S/0 (clinic/NGO)         | S/2,000–20,000        |
| Printing/outreach/travel                           | S/500–5,000              | S/3,000–20,000        |

Much can be done for near-zero with pro-bono experts and public data, though travel in remote regions adds cost. Spend where a paid report materially strengthens an OEFA complaint or a court case — one solid report on the decisive issue (usually hydrology/water or health) is worth more than five general ones.

## WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

**Start at the certifying authority's and the specialised bodies' own sites.** In Peru the official documents for a project — the EIA, the classification, the participation record, the certification and its conditions — are held by the **certifying authority** (SENACE or the sector ministry), and SENACE publishes assessment documents through its transparency and certification systems. **OEFA** publishes its oversight and sanction records; **ANA** holds water data; **SERNANP** holds protected-area data; **INGEMMET/Geocatmin** maps mining concessions. Check these regularly. The legal clock often runs from what is published or notified there.

**The EIA and the participation/consultation record.** Get the company's EIA (or MEIA) as it is publicised — it is public, and it is where the company admits harm. The **participation record** and, where it applies, the **prior-consultation process** are what you scrutinise for legal grounds.

**Baseline environmental data.** ANA (water), SERNANP/MINAM/SERFOR (protected areas, forests, species), OEFA (monitoring), and the company's own EIA baseline.

**Ownership, concessions, and money.** Company ownership from **SUNARP**; mining concessions from **INGEMMET/Geocatmin**; officials' declarations and transparency portals; and public-procurement records at **OSCE/SEACE**.

**How to force a document open.** A request under Peru's **transparency and access-to-information law (Ley 27806)** compels a public body to release information it holds, within a set period, with an appeal if refused — and the **General Environmental Law (Ley 28611)** specifically guarantees access to environmental information. Use the wording in Section 8E.

**The Defensoría's conflict reports.** The **Defensoría del Pueblo** publishes a monthly **Reporte de Conflictos Sociales** that tracks conflicts nationwide, names the parties, and records the state of dialogue — a uniquely useful, authoritative resource for understanding and legitimising your fight.

**Free and low-cost help.** Environmental and Indigenous-rights NGOs and legal groups advise and litigate (Peru has several strong ones working on extractives, water, and Indigenous rights), and university clinics take strategic cases; **OEFA**, the **Defensoría**, and the **access-to-information** route are free to approach.

**Tie it to the map.** The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the communities, rondas, frentes de defensa, and NGOs already working nearby. Pull that thread first, then follow it into the certification systems, the registries, and the information requests above.

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## STEP 3: BUILDING LOCAL OPPOSITION

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### Critical Insight About Organizing

Sustained, visible local pressure is the single biggest factor in whether a Peruvian project is stopped or reshaped — more so than in many countries, because the levers that matter (a region or municipality withholding support, genuine prior consultation, an OEFA complaint with community weight, political defeat) all respond to organised communities. Peru has a deep and storied tradition of community organising: the **comunidades campesinas y nativas** (recognised peasant and native communities with collective land and their own assemblies), the **rondas campesinas** (community self-defence and justice organisations), and the **frentes de defensa** (broad local defence fronts) that led the great conflicts of Conga, Tía María, Las Bambas, and Espinar. Build on that tradition.

Two principles carry special weight here: **legitimacy and rootedness** (a movement led by the recognised communities, their authorities, the rondas, and a broad frente de defensa is far harder to dismiss — and, where Indigenous or native rights are engaged, the community's own representative institutions are the rights-holders the law recognises), and **durability and unity** (Peru's landmark fights were sustained over years, and the State and companies have repeatedly used selective benefits and co-optation to split communities, so unity is a strategic asset to guard).

### PHASE 1: FOUNDATION (Months 1-2)

**Step 1a: Work through the community's own institutions.** Start with the recognised community authorities and assemblies (**la asamblea comunal**), the rondas, and the people most directly affected — those whose water, land, health, or livelihood is at stake. In Peru the community's own institutions are not just allies but, where collective rights apply, the legal rights-holders. Listen first: concrete local concerns (a river, a spring, herding land, contamination) motivate more than abstractions.

**Step 1b: Affinity groups by concern.** Let people plug in through what they care about — water, land and herding, health, and cultural and territorial rights. Different concerns reach different people.

**Step 1c: Constitute or strengthen the defence organisation.** Where they exist, work through the **comunidad**, the **rondas**, and a **frente de defensa**; where a fight spans several communities or districts, form or join a broad **frente de defensa** with representatives, an assembly, and minuted decisions. This is the vehicle that coordinates participation, demands consultation, files the OEFA complaint, negotiates with authorities, and — with legal advice — brings an amparo. Keep decisions transparent and collective; it protects legitimacy and resists co-optation.

### PHASE 2: PUBLIC LAUNCH (Months 2-3)

**Step 2a: Community assembly.** Hold a public assembly to inform, decide collectively, and mandate representatives; bring the maps, the EIA's own admissions, and the participation deadline. A visible, united assembly also signals seriousness to authorities and the press, and a formal community decision carries real legal and political weight.

**Step 2b: Opposition materials.** One-page, factual, sourced materials (in Spanish and, where relevant, the community's own language); lead with water, health, land, and rights stakes and the deadline. Include how to submit observations in the participation process.

**Step 2c: Mass observations and the consultation demand.** Coordinate **mass individual and communal observations** in the citizen-participation process, and — where Indigenous or native rights apply — a formal **demand that prior consultation be carried out**. Many observations carry more weight than one letter, and a formal consultation demand puts a powerful right on the record.

**Step 2d: Media at launch.** Time it to the participation window so coverage and the deadline reinforce each other.

### PHASE 3: COALITION EXPANSION (Months 3-6)

**Step 3a: Organisation outreach.** Bring in national and regional environmental and Indigenous-rights organisations

(several litigate and provide technical support), the regional federations of communities, the Church and human-rights vicariates (which have historically supported these fights), and medical and academic experts. Each adds credibility, reach, lawyers, and protection.

**Step 3b: Coalition agreements.** Agree roles, spokespeople, and messaging clearly before disagreements arise, and settle how decisions are made across communities. Who represents the community in consultation? Who instructs the lawyer for an amparo? Who files with OEFA? Who speaks to the press? Settling this early prevents the splits — and the co-optation — that sink movements.

**Step 3c: Coordinated public work.** Joint observations and consultation demands, joint OEFA complaints, shared experts and lawyers, shared costs, and a coordinated approach to the region, the municipalities, the Defensoría, and the national government.

## PHASE 4: SUSTAINED PRESSURE (Months 6-12)

**Step 4a: Political pressure (region and municipality).** Lobby the regional government and council and the municipalities for resolutions against the project and for withholding local support; engage the Defensoría; press national authorities and Congress. In Peru, a region or municipality turned against a project, and the Defensoría's attention, matter a great deal.

**Step 4b: Public actions and media (ongoing).** Lawful assemblies, marches, and peaceful protest are a constitutional right and a Peruvian tradition; keep them orderly and safe. Steady media keeps the issue alive and signals durability. Feed the story new pegs — the EIA, the participation process, the consultation demand, the certification, the OEFA complaint, the amparo.

**Step 4c: Prevent failure points.** Movements fade or fracture when they miss the participation deadline, rely on sentiment over evidence, are split by selective benefits and co-optation, or peak too early. Diarise every deadline, build the file, decide collectively and transparently, guard unity, and pace to the decision — which, in Peru's biggest fights, has run for years.

## Worked example: a frente that unlocks the strong levers

Several campesino communities learn that a mine will affect the headwaters that feed their valley. A wave of anger and social-media activity appears — real energy, no leverage. What converts it into force happens in the first weeks and is deliberately unglamorous. First, the communities act **through their assemblies**, taking formal decisions, because as recognised communities they are the rights-holders the law protects. Second, they **form a frente de defensa** across the affected districts, with mandated representatives and transparent, collective decision-making — the vehicle authorities must deal with and the structure that resists co-optation. Third, because the communities hold **collective rights**, they demand **prior consultation** and document their recognised status — turning a protest into a rights claim a court can enforce. Fourth, they bring in a **hydrologist and an Indigenous-rights lawyer** to scrutinise the EIA's water analysis and the consultation gap. By the time the participation process opens, the frente can file mass observations, demand consultation, lodge an **OEFA** complaint on water, and — if the certification issues without consultation — bring an **amparo**. None of that required a court win yet, but it made every later lever real. The lesson generalises: **in Peru, the community institutions you work through and the frente and consultation demand you organise in month one are what make the OEFA, consultation, and amparo levers real by month eight.**

## Opposition Building Budget: Year-Long Campaign (PEN)

Highly variable. A lean, community-run movement operates on **a few thousand to tens of thousands of soles** (assemblies, materials, travel, the participation process), much of it volunteer. A campaign expecting litigation should budget for **expert reports (S/10,000-80,000)** and **legal costs** — though the amparo has no filing fee and NGOs and clinics take strategic cases pro bono, and OEFA complaints are free; travel and expert fees are the main costs. Peruvian movements typically fund the legal stage through **community contributions, solidarity and NGO support, and coalition cost-sharing**. Keep transparent, collective accounts — it protects legitimacy and resists co-optation.

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## STEP 4: LEGAL CHALLENGES

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Peru gives communities real legal tools — citizen participation, prior consultation, OEFA oversight, and the constitutional and administrative courts — but they are configured differently from many countries, and choosing the right one is essential. Three tracks — participation and consultation, oversight (OEFA), and the courts.

## TRACK 1: CITIZEN PARTICIPATION AND PRIOR CONSULTATION (the front door)

- **Citizen participation (participación ciudadana).** During the EIA, submit written **observations** in the workshops (talleres), the public hearing (audiencia pública), and the comment periods. It builds the record, can shape the conditions or the certification, and an ignored or sham process is a documented flaw you can raise later. Aim at both technical points (water, cumulative impact) and procedural ones.
- **Prior consultation (consulta previa — the powerful right).** Where the project affects the **collective rights of Indigenous or native peoples**, the State must carry out **prior consultation** under Law 29785 and **ILO Convention 169** before adopting the measure — informing, allowing internal evaluation, and holding good-faith intercultural dialogue. It is not a veto, but it is a real, court-enforced right: **the absence of a required consultation has led courts to annul measures, including mining concessions.** Demand it in writing, and litigate its absence.

## TRACK 2: OEFA OVERSIGHT AND SANCTIONS (the enforcement route)

- **A complaint to OEFA (denuncia ambiental).** OEFA is the environmental oversight and enforcement agency. File a complaint about monitoring failures, breaches of the EIA's conditions, or contamination; OEFA can **inspect, order corrective measures, and sanction**. It is free, powerful once a project operates, and creates a documented compliance record. Water-monitoring breaches are a common, strong basis.
- **Other regulators.** ANA (water), SERNANP (protected areas), and the sector authorities each provide oversight and complaint routes.

## TRACK 3: THE COURTS (the constitutional and administrative route)

- **The amparo (constitutional protection).** A fast constitutional action to stop a violation of a fundamental right — the right to prior consultation, to a healthy environment, to communal property, to health, to water. It has **no filing fee**, is meant to be swift, and is the classic tool where consultation was skipped or a right is threatened. File promptly, as time limits apply.
- **The contentious-administrative suit.** Challenge the **legality of the certification** (or of the classification, or the EIA approval) as an administrative act — for defects, inadequate participation, or breach of the SEIA rules — within the statutory period.
- **The acción popular.** Challenge an **unlawful regulation or decree** (for example a norm that weakens participation or consultation) before the Judiciary.
- **The Tribunal Constitucional.** The last word on rights, including consultation and the environment; strategic cases reach it on appeal.
- **International backstops.** The Inter-American human-rights system and ILO supervision provide further, slower leverage where rights are breached.

## The three legal challenge types

### TYPE 1: PARTICIPATION + CONSULTATION (the front door)

Observations in participation, and — where Indigenous or native rights apply — insisting on and litigating prior consultation. No fee, builds the record, and (for consultation) a court-enforced right.

### TYPE 2: OEFA OVERSIGHT (the enforcement route)

A free complaint to the environmental enforcement agency, powerful once the project operates — inspection, orders, and sanctions.

### TYPE 3: THE COURTS (amparo, administrative suit, acción popular)

The constitutional and administrative routes — annul an unlawful certification, force consultation, or strike an unlawful norm. Peru's sharpest legal tools where rights or legality are breached.

## Legal Strategy Decision Tree

1. **Is the participation window open?** → Submit **observations** now, and — where Indigenous or native rights apply — **demand prior consultation** in writing.
2. **Was consultation required but skipped, or a right threatened?** → Prepare an **amparo** (no fee, fast), and keep

gathering the rights evidence.

3. **Did an unlawful certification issue?** → Prepare a **contentious-administrative suit** within the statutory period, and/or an amparo.
4. **Is the project operating / breaching conditions?** → File an **OEFA complaint**; escalate to the courts if oversight fails.

## Litigation Success Factors

The right ground (skipped consultation; inadequate participation; a water/EIA defect; breach of conditions); the community's documented status and collective rights (for consultation and communal-property claims); a rigorous, expert-backed evidence file (water above all); prompt filing within the deadlines; and lawyers experienced in constitutional and environmental litigation. Missing any one weakens the case.

## What to Avoid: Legal Failures

Failing to demand consultation where it applies; missing the amparo or administrative-suit deadline; relying on sentiment instead of documented harm; and going to court on a general grievance rather than a specific legal defect (skipped consultation, a participation flaw, a water/EIA failure, a breached condition).

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# TURNING YOUR EVIDENCE INTO ARGUMENTS

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Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often work in Peru — so you file the right fact against the right ground.

**A skipped or bad-faith prior consultation → amparo / annulment.** One of the strongest Peruvian grounds where Indigenous or native rights are engaged. Feed it with: proof of the community's recognised status and collective rights, and the record showing consultation was omitted or not in good faith.

**An inadequate or sham citizen participation → administrative suit / annulment.** Feed it with: the participation record showing observations ignored, a token hearing, or a rushed MEIA process.

**Underestimated water/headwater impacts → participation, OEFA, and court grounds.** Feed it with: your hydrologist's critique and ANA data on aquifers, headwaters, and wetlands.

**Ignored cumulative impacts in the basin → participation / legal ground.** Feed it with: a map and list of the other projects and concessions in the same basin and the EIA's silence on their combined effect.

**Breach of the EIA's conditions or contamination → OEFA complaint and sanction.** Feed it with: the conditions or the standard and dated monitoring evidence of breach.

**A threat to health, water, or communal property → amparo.** Feed it with: a physician's or hydrologist's assessment and the communal-title evidence.

The pattern: match one clean, documented defect to one clear ground, lead with **prior consultation** (where it applies) and the **water** grounds, and get them into participation, before OEFA, and — if needed — before the courts within the deadlines. An environmental or Indigenous-rights NGO can tell you fast which ground is live.

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# STEP 5: MEDIA STRATEGY

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Media rarely stops a project by itself, but it raises the political cost of approval, protects the movement and its leaders (visibility can be a shield), sustains momentum, and reaches experts and allies you would not otherwise find.

## How Journalists Actually Work

Reporters need a story with a hook, a human face, a conflict, and a document. Hand them the EIA's own damning admissions (quoted, with page numbers), a named community member whose water or land is at stake, a clear deadline, and a map or striking image (the threatened river, headwater, or wetland). Make it easy, and never give a fact you cannot stand behind.

## The Newsworthiness Formula

Local stakes + a credible threat + a deadline + a David-and-Goliath frame + a visual = coverage. Peruvian conflicts — mines, oil blocks, dams, roads, and threats to water and communal land — draw regional and national attention on exactly this formula, especially where water, an Indigenous or campesino community, or contamination is at stake.

## Know the Outlets That Cover This Beat

Map the national outlets and their environment/investigations desks, the strong regional and community press and radio (which reach affected communities directly, and in the Andes and Amazon are essential), and specialist environmental and Indigenous-rights media. Build a contact list with names and beats.

## Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship with a journalist beats a dozen releases. Offer access — to the site, to affected community members, to your experts.

## Why media matters even when it doesn't make the front page

Coverage does quieter work: it reaches an expert who reviews the EIA for free, a lawyer or NGO that will bring an amparo, an official at the Defensoría or OEFA, and it creates a dated public record that helps protect leaders who face real risk. A steady drumbeat of accurate coverage, plus the Defensoría's conflict reporting, moves regional and national authorities more reliably than one national splash — and Peru's biggest conflicts became national stories that shifted policy.

## Sample Media Timeline

Launch with the participation window; refresh at each milestone — the mass observations, the consultation demand, the certification, the OEFA complaint, the amparo. Each is a fresh news peg.

## Media Measurement

Track coverage, but measure what matters: whether regional and national authorities and the Defensoría are responding, whether the movement is growing and its leaders are safer, whether experts and allies come forward, and whether the politics around the project is shifting.

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## EMAILS & LETTERS

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Ready-to-adapt templates. Keep them factual, dated, and sourced. Submit important ones through the authority's registry (mesa de partes) or the participation process, and keep dated proof (cargo) of anything you file — Peruvian deadlines are real and proof of filing matters.

### 8A. Email to a reporter (story pitch)

**Subject:** [Region]: communities challenge [project] before [deadline] — documents attached

Estimada/o [name],

A [project type] is proposed at [location, region]. The company's own environmental study (EIA) admits [specific admitted impact, quoted, with page number], including impacts on [the river/headwaters/wetlands] that [community] depends on. The window to submit observations closes on **[date]**.

The affected communities, organised as **[frente de defensa / community]**, are submitting observations, [demanding prior consultation,] and preparing [an OEFA complaint / an amparo]. The human stakes: [water/health/land point]. [If relevant: these are recognised campesino/native communities with collective rights, so prior consultation applies.]

I can connect you with community members and our experts, and arrange a visit. Could we talk this week?

[Name] · [Organisation] · [phone] · [email]

## 8B. Letter to a decision-maker (certifying authority / regional government / municipality)

**Subject:** [Project] — [file/expediente number]

A la/el [certifying authority / Regional Governor / Mayor]:

We write on behalf of [community / frente de defensa] regarding [project] at [location]. We respectfully ask you to **[reject/annul the certification / require genuine citizen participation / ensure prior consultation is carried out / withhold local support]** for the following reasons:

1. [Ground 1 — e.g. the EIA underestimates impacts on the headwaters and aquifer.]
2. [Ground 2 — e.g. prior consultation, required for our recognised community, was not carried out.]
3. [Ground 3 — e.g. cumulative impacts with other projects in the basin were not assessed.]

We request a written response. We are ready to provide the underlying evidence.

[Signatories, community/frente, contact]

## 8C. Observations in citizen participation

**Observations on the EIA for [project], [certifying authority], expediente [number]**

[Community / frente de defensa] submits the following observations within the participation period: 1. **Water.** [Impacts on the headwaters, aquifer, and wetlands are underestimated; evidence attached.] 2. **Prior consultation.** [Our community is recognised as campesina/nativa with collective rights; prior consultation under Law 29785 and Convention 169 must be carried out.] 3. **Cumulative impact.** [This project, with other projects/concessions in the basin, must be assessed together.] 4. **Participation.** [The process was inadequate because [reason].]

We ask the authority to **reject the certification** or, at minimum, require full assessment, genuine participation, consultation, and strict conditions.

[Date, community/frente, contact; attach evidence]

## 8D. Coalition / solidarity outreach letter

**Subject:** Please support our fight on [project] — [region]

Estimada/o [organisation / lawyer]:

We are communities opposing [project] at [location], which threatens [water, land, health, communal rights]. We are submitting observations, [demanding prior consultation,] and preparing [an OEFA complaint / an amparo].

Your [litigation experience / technical support / accompaniment] would strengthen and help protect our effort. Could we meet to agree how to work together?

[Name, community/frente, contact]

## 8E. Access-to-information request (solicitud de acceso a la información)

**Subject:** Request for public information under Law 27806 and Law 28611

A la/el [certifying authority / OEFA / ANA / regional government]:

Under the **Law of Transparency and Access to Public Information (Ley 27806)** and the environmental-information rights in the **General Environmental Law (Ley 28611)**, we request: 1. the full EIA (or MEIA) and certification file for [project]; 2. the citizen-participation record and any prior-consultation documents; 3. [specific data — water monitoring, the classification, OEFA oversight records].

Please provide these within the legal period. If any part is refused, please state the specific legal basis; we reserve the right to appeal.

[Name/community, date, contact]

## 8F. Legal-action instruction to counsel (amparo / administrative suit)

**Subject:** Proposed amparo / administrative suit regarding [project]

A la/el [counsel]:

[Community / frente / named members] intend to [file an amparo / a contentious-administrative suit] regarding [project], on the grounds that [prior consultation was omitted / citizen participation was inadequate / the certification is unlawful / a fundamental right (water/health/communal property) is threatened]. We can provide: proof of the community's recognised status and collective rights, water and health evidence, and expert reports. Please advise on the **deadline** (the amparo must be filed promptly; the administrative suit within its statutory period), a precautionary measure (**medida cautelar**) to suspend works, standing, and strategy.

[Date, signature]

## 8G. Press release (effective)

**PARA DIFUSIÓN INMEDIATA — [date]**

**Communities of [region] submit [number] observations against [project] before [deadline]**

[Frente de defensa / communities] today submitted [number] observations on [project] at [location], citing [top two grounds], and [demand prior consultation / will bring an amparo] if the certification is granted. "[Short, human quote from an affected community member]," said [name, role].

The company's own EIA admits [quoted impact]. The certification rests with [authority]; the observation window closes on [date]. [If relevant: recognised campesino/native communities are affected, so prior consultation applies.]

**Contacto:** [name, phone, email]. Photos, the full observations, and interviews available on request.

## 8H. Complaint to OEFA (denuncia ambiental)

**Subject:** Environmental complaint (denuncia) regarding [project/facility]

Al OEFA:

We, [community / frente / residents] of [area], file this complaint regarding [project/facility] at [location], concerning [water contamination / breach of the EIA's conditions / monitoring failures]. We attach [monitoring data, photographs, and the relevant condition of the certification]. We request inspection (supervisión), corrective measures, and, where warranted, sanction, and ask to be kept informed of the proceedings.

[Community/frente, date, contact]

## Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual expediente and dates, and — for anything heading to court — have counsel experienced in constitutional and environmental litigation review it. Deadlines are real (the participation window; the amparo, which must be filed promptly; the administrative-suit period); keep dated proof (cargo) of everything you file, and — given the risks to land defenders — get advice on protecting the community's leaders.

## IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build a frente or run a multi-year campaign. If you have an afternoon a week, you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Submit observations in the citizen-participation process before the deadline.** In your own words, citing one or two concrete problems (water above all; the community's rights; a specific EIA defect). It costs nothing, goes on the record, and preserves the basis for later steps.
2. **Where Indigenous or native rights apply, demand prior consultation in writing.** A formal demand puts a powerful, court-enforced right on the record — one of the strongest levers Peru offers.
3. **Get the EIA and quote its worst admission back to the authority.** The company's own words carry more weight than any outside claim.

4. **File a free complaint to OEFA if there is any breach or contamination.** It can trigger inspection and sanction without a lawyer.
5. **Send one accurate email to a regional or national reporter** (Section 8A). A single story raises the political cost and can reach an expert, a lawyer, or the Defensoría.
6. **Request the file under the transparency law** (Section 8E) — including the participation and consultation record, often where the case is won.
7. **Alert the Defensoría del Pueblo.** Getting your conflict onto its radar (and into its monthly report) adds legitimacy and a measure of protection.

If you do only the first three, you have put your objections and (where it applies) your consultation right on the record, and left a trail others can build on. That is a real contribution, not a token one.

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## WHEN THE SYSTEM IS TILTED

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Peru's system leans hard toward extractive and infrastructure investment, the environmental authority has been weakened at times, participation is often a formality, and defending land and water can carry real personal risk. Being honest about this is how you pick the tools that actually work — and stay safe.

### What This Tilt DOES (and DOESN'T DO)

The tilt speeds permits, keeps promotion and certification in the same hands, and treats participation as a box to tick. It does **not** close the doors: **prior consultation** is a court-enforced right where Indigenous or native rights apply; the **amparo** is a fast, fee-free constitutional action; **OEFA** gives a real oversight-and-sanction route; **regions and municipalities** are genuine political levers; the **Defensoría** monitors and legitimises; and international bodies are a backstop. The key is to combine them, move on time, and concentrate force where the tilt is weakest — consultation, water, and OEFA compliance.

### Reading Your Tilt: Responsive, Mixed, National-Priority

- **Indigenous/native rights engaged, a responsive region.** Here consultation, the amparo, participation, OEFA, and regional political pressure all do real work.
- **Mixed.** A project the national government wants but the region resists. Weight shifts toward organised community pressure, media, OEFA, and a consultation or amparo claim.
- **National-priority / State-promoted project.** A big mine or oil block the State is committed to. Assume participation is a formality and the fight will be long; prepare the **consultation/amparo route, OEFA complaints, the regional and municipal levers, and a sustained, protected campaign.** Even here, delay, forced consultation, OEFA sanctions, and policy change are achievable — Peru's landmark conflicts reshaped policy even when a project proceeded.

### Documented Peruvian Dynamics

The record shows both the wall and the way through. The Constitutional Court has **annulled measures, including mining concessions, granted without required prior consultation**, so that right genuinely bites. At **Las Bambas**, an attempt to nearly double the operation through a rushed EIA modification with thin studies and token participation triggered legal and social resistance. The conflicts at **Conga, Tía María, and Espinar** show that organised, durable community resistance, backed by the Defensoría's conflict monitoring and the courts, reshapes projects and national policy even when a specific development is not stopped. The recurring, sober lesson is that this terrain can be dangerous, and protecting leaders is part of strategy.

### Assessment Framework — Determine Your Situation

Ask: Are Indigenous or native rights engaged (consultation applies)? Is water/headwater impact central (a strong, decisive ground)? Was participation genuine? Is the region or municipality persuadable? Is the project a State priority (a harder, longer fight)? Are leaders at risk (plan protection)? The answers tell you whether to lead with consultation, the amparo, OEFA, or political pressure — usually a combination.

### Direct Action: Factual Information (Descriptive, Not Prescriptive)

Peruvian movements rely on assemblies, marches, and peaceful protest, which are constitutional rights and a deep tradition, alongside the legal and oversight routes. Protest in extractive conflicts has at times met a heavy and sometimes deadly state response, and states of emergency can suspend some rights. Know the law, prioritise safety and the protection of leaders, keep actions lawful and orderly, and get legal advice before anything that could carry legal or physical risk. This guide notes such tactics exist; it does not advise breaking the law, and the movement's safety and credibility are assets worth protecting.

## Honest Assessment

Tilted fights are harder, some are lost, and this terrain can be genuinely dangerous. But "harder" is not "hopeless" — prior consultation, the amparo, OEFA, regional and municipal levers, the Defensoría, and durable community pressure have delayed, reshaped, forced consultation on, and won sanctions against real projects, and even an ultimate loss on one project often buys years of delay, forced consultation, and an organised, experienced community. Concentrate force where the tilt is weakest, protect your people, and settle in for a long campaign if the stakes justify it.

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## WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

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Most bad decisions are lawful decisions you disagree with. But capture is real in Peru — the country has lived through vast corruption scandals reaching the presidency — and it does not look the same in every institution. Read your specific situation actor by actor, because the type of capture changes which lever works — and, sometimes, tells you a lever is closed. Handle it carefully: reckless public accusations can expose you to defamation liability and, in this terrain, to real danger.

**The certifying authority and the sector ministry.** The central pressure point: a ministry (like MINEM) that both **promotes and certifies** a sector is structurally conflicted, and recent measures have shifted certification power toward the promoter. Signs: a rushed certification, an EIA that reads as the company's document, a classification chosen to avoid full assessment. Lever: the SEIA rules, the participation and consultation record, and an administrative suit or amparo.

**Regional and local officials.** Capture here often runs through campaign finance, patronage, and selective benefits to split communities. Signs: a sudden change of stance, a rushed local permit, an official tied to the company. Lever: officials' declarations, the Contraloría (for public money), and the ethics rules.

**The companies.** Watch for concessions quietly acquired before a project is public, opaque ownership, hospitality and revolving-door ties, and the use of **selective benefits and social programmes to divide communities** (a documented tactic). SUNARP and Geocatmin surface the ownership and concession timeline; the Lava Jato scandal showed how deep corporate-state capture can run.

**The courts.** Peru's judiciary is independent in principle and has delivered landmark consultation rulings, but it has also faced serious corruption scandals, cases run slow, and access is harder in remote regions. Treat delay and unevenness as structural features to plan around (seek a precautionary measure; use the Constitutional Court on appeal) — and where genuine judicial corruption appears, it is a matter for the control bodies and prosecutors.

**National politics and "national interest."** Where a project is framed as national priority, expect wide discretion in its favour and, at times, states of emergency against protest. Not always corruption, but capture of a kind; the honest path is the consultation/amparo route, OEFA, the Defensoría, and public pressure.

**How to act on it, safely.** Document from public sources before you speak. Route serious allegations through lawyers and the proper bodies — the **Contraloría** for public money, the **Ministerio Público / specialised prosecutors (including FEMA)** for environmental crime and corruption, and the **Defensoría** — not social media. A reckless public accusation can expose you to defamation liability, hand the company a way to change the subject and split the community, and, in this terrain, endanger people. Name capture privately in your strategy; prove it publicly only when you can, and protect your leaders.

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## INTEGRATION & TIMELINE

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The five steps run in parallel and reinforce each other over a campaign that typically spans a year or more (and litigation,

if it comes, much longer — Peru's biggest conflicts ran for years). Here is how they fit onto one timeline.

## Realistic 12-Month Campaign Timeline

**Months 1-2 (Foundation).** - Identify the target precisely (Step 1) and write the one-page fact sheet — project, certifying authority, other permits, whether prior consultation applies, the regional/municipal politics, the lever to pursue, every deadline. - Work through the community's institutions and constitute or strengthen the **frente de defensa**. - Begin baseline documentation (Step 2, Layer 1), water first, before ground is broken, and confirm the community's recognised status. - Request records via the transparency law, including the participation and consultation record. - Alert the Defensoría del Pueblo.

**Months 2-3 (Launch).** - Submit **observations** in the citizen-participation process — the key deadline — and, where Indigenous or native rights apply, **demand prior consultation** in writing (Step 4, Track 1). - Press the region and municipalities for resolutions and withheld support. - Hold the community assembly and launch media timed to the participation window (Steps 3 & 5). - Complete the EIA critique with expert help, focusing on water, cumulative impact, and the consultation gap (Step 2, Layer 2).

**Months 3-6 (Expansion).** - Build the coalition — bring in environmental and Indigenous-rights NGOs, regional federations, the Church/human-rights vicariates, and experts (Step 3, Phase 3). - Finish the health/economic analysis (Step 2, Layer 3). - Assess the legal routes; prepare an **OEFA complaint** if there is any breach or contamination. - Sustain media and political pressure.

**Months 6-12 (Pressure & Decision).** - Escalate political pressure on the region, municipalities, the Defensoría, and national authorities (Step 3, Phase 4). - When the certification issues, act fast: prepare an **amparo** (promptly) and/or a **contentious-administrative suit** within the statutory period, with a precautionary measure to suspend works (Step 4, Track 3). - Keep the **OEFA** complaint and oversight running (Track 2).

**Beyond 12 months.** - Litigation and appeals can run for years and may reach the Constitutional Court; a precautionary measure protects you in the meantime. - If the project proceeds, pursue OEFA oversight, compliance monitoring, and, for harm, further complaints and claims. - Keep the community organisation and the file alive; the movement and evidence are assets for the next fight, and protecting leaders remains a priority.

## Warning Signs — Act Early

The EIA is publicised and the participation window opens (act now); an **MEIA** (project modification) is filed, often rushed (a classic moment to intervene); concessions are being acquired; a "priority"/fast-track designation is used; selective benefits or social programmes start circulating (a divide-and-co-opt warning); consultation is being skipped where it applies. Early action beats late reaction — and demanding consultation and lining up legal advice early is far stronger than scrambling after a certification issues.

## Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: identify the live lever (usually consultation, water, OEFA, and local/political pressure); work through the community's institutions and build a broad, durable frente, guarding unity against co-optation; document rigorously, water first; use prior consultation and the amparo where rights apply, plus OEFA; sustain media and regional/municipal pressure and engage the Defensoría; hit every deadline; and protect their leaders. Losing campaigns: fail to demand consultation; miss the amparo/administrative deadlines; rely on sentiment; get split by selective benefits; peak early; or neglect leader safety.

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## FINAL ASSESSMENT

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### Real Outcomes: What Winning Looks Like

"Winning" in Peru takes several forms, and it is worth naming them so you recognise a win when you get one: - an EIA (or MEIA) **rejected or annulled** for defects or for skipping consultation; - **prior consultation forced** where it was omitted, or a measure annulled for its absence; - **tightened conditions**, or a refused water permit or protected-area authorisation; - **OEFA sanctions and oversight** that raise the cost of non-compliance; - a **court win** via amparo or administrative suit, or a **precautionary measure** buying time; - a **region or municipality withholding support**, or resolutions against the project; - a project **delayed for years** until its economics or politics collapse, or a **redesign** that removes the worst harm;

- or **policy change** driven by a landmark conflict even where a specific project proceeds.

Peruvian communities have achieved each — usually through organised community pressure plus consultation, participation, OEFA, and the courts, not through a single dramatic win.

## Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If Indigenous or native rights are engaged and consultation was skipped, or a water/EIA defect is clear, an amparo or administrative suit may be well worth it. If the legal deadlines have passed, effort shifts to OEFA oversight, the next MEIA, regional politics, and the next election. If every avenue is exhausted — and given the real risks — redirect accordingly. Continuing is not always right; neither is quitting at the first setback — Peru's biggest wins came after years of persistence. Throughout, weigh the safety of your people.

## The Bottom Line

Peru's system leans hard toward extractive and infrastructure investment, keeps promotion and certification in the same hands, often treats participation as a formality, and can be dangerous for land defenders — but it hands communities a distinctive and powerful set of levers: **citizen participation** in every EIA; **prior consultation** for Indigenous and native peoples, a court-enforced constitutional right that has annulled measures granted without it; **OEFA** oversight and sanctions; a fast, fee-free **amparo** and the administrative and acción-popular routes; genuine **regional and municipal** political levers; the **Defensoría del Pueblo's** monitoring; and a deep tradition of community organisation. Communities that work through their own institutions and build a broad, durable frente, document to the water and rights standards, demand consultation and use the amparo and OEFA rather than betting on a single dramatic move, guard their unity against co-optation, keep steady media and political pressure, engage the Defensoría, and protect their leaders have annulled certifications, forced consultation, won sanctions and precautionary measures, delayed and reshaped projects, and changed policy — and can again. No single step wins; the combination does. Start today by finding your deadlines, working through your community's institutions, confirming whether consultation applies, and identifying which lever is actually open.